

limitation on punitive damage awards. Used in its ordinary sense, the adjective ‘despicable’ is a powerful term that refers to circumstances that are ‘base,’ ‘vile,’ or ‘contemptible.’ [Citation.] As amended to include this word, the statute plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable conduct’ must be found.” (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) “In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (*Taylor, supra*, 24 Cal.3d at 895-896.)

Additionally, claims for punitive damages must be pleaded with particularity as to the facts constituting the alleged egregious conduct. (*G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29; *Grieves v. Sup. Ct.* (1984) 157 Cal.App.3d 159, 166.) “[A] conclusory characterization of defendant’s conduct as intentional, willful and fraudulent is a patently insufficient statement of ‘oppression, fraud, or malice, express or implied,’ within the meaning of section 3294.” (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Rather, the pleading must contain factual allegations of wrongful motive, intent, or purpose. (*Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 317.)

Here, while Plaintiffs allege that Uber developed and requires its drivers to use an app that causes distracted driving, these allegations are insufficient to support a claim for punitive damages. There are no allegations that Uber was aware of the probable consequences of the Uber App or that it deliberately failed to avoid those consequences. (*Taylor, supra*, 24 Cal.3d at 895-896.) Accordingly, the motion to strike must be granted.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2509877	MORENO VS CARDENAS MARKETS, LLC	MOTION TO COMPEL RESPONSE TO PRODUCTION OF DOCUMENTS REQUEST BY JAIME MORENO

Tentative Ruling: Granted.

No opposition filed.

Responding party is ordered to serve verified responses to the Demand for Production of Documents, Set One, Nos. 1-4, without objections within 30 days of service of notice (CCP § 2031.310). Responding party is further ordered to pay attorney’s fees and costs to moving party in the amount of \$967.50 within 30 days of service of notice. (CCP 2023.010, 2030.290 (c), 2031.310, and 2033.280.)

Moving party ordered to give notice pursuant to CCP §1019.5.